



Council Agenda Background

PRESENTER: Michael Wells, City Secretary

DATE: 08/11/20

Council Mission Area: Encourage citizen involvement.

ITEM:

Consider a resolution ordering a special election of the City of Bedford, Texas to be held on November 3, 2020 to allow the voters to consider voting for or against the following proposition: the legal sale of all alcoholic beverages including mixed beverages.

City Attorney Review: Yes

SUMMARY:

This item is to formally order a special election to allow residents to vote for or against the following proposition: the legal sale of all alcoholic beverages including mixed beverages. This special election would be held in conjunction with the general election for City offices. Early voting begins on Tuesday, October 13, 2020 and runs through Friday, October 30, 2020. The main early voting location in Bedford will be the Public Library; however, residents can vote at any Tarrant County early voting location. Residents can further vote at any Tarrant County election day location.

BACKGROUND:

The City of Bedford received a petition meeting the requirements of Chapter 501 of the Texas Election Code related to local option elections on December 27, 2019. The minimum number of valid signatures required to call a local option election was 6,729. Tarrant County Elections performed the petition signature verification using a statistical sampling method pursuant to Section 501.031(a) of the Texas Election Code and confirmed approximately 7,300 valid petition signatures. Once it has been determined that the petition contains the required number of valid signatures, the City Council must order the election at its next regular session occurring 30 days on or after the date the petition was filed with the City Secretary. The City Council so ordered the election at their meeting on January 28, 2020 for the election to be held on May 2, 2020 uniform election date.

Due to the impact of the COVID-19 virus and the timing of municipal elections, Governor Greg Abbott issued a proclamation on March 18, 2020 suspending Sections 41.0052(a) and (b) of the Texas Election Code, allowing political subdivisions to move their general and special elections to the uniform election date on November 3, 2020. The City Council approved a resolution at their meeting on March 25, 2020 to postpone the election to November 3, 2020 uniform election date, unless the Governor agreed to allow an earlier election date.

Governor Abbot issued another proclamation on July 27, 2020 extending the period for early voting. It now begins on Tuesday, October 13, 2020 and runs through Friday, October 30, 2020. The main early voting location in Bedford will be the Public Library; however, residents can vote at any Tarrant County early voting location. The early voting schedule is below:

October 13-17	Monday - Saturday	8:00 a.m. - 5:00 p.m.
October 19 - 23	Monday - Friday	8:00 a.m. - 5:00 p.m.
October 24	Saturday	7:00 a.m. - 7:00 p.m.
October 25	Sunday	11:00 a.m. - 4:00 p.m.
October 26 - October 30	Monday - Tuesday	7:00 a.m. - 7:00 p.m.

Election Day is 7:00 a.m. to 7:00 p.m., Tuesday, November 3, 2020. Residents will be able to vote at any Tarrant County election day location.

As in the past and per state law, staff recommends that this election be held jointly and administered by the Tarrant County Election's Administration. This has proven to be the most cost effective and efficient way to hold elections. Per Heider Garcia, the Tarrant County Elections Administrator, the total cost to the City for the election will be \$80.00. There will be some minor costs for translation services and publishing the required notice of election in the Fort Worth Star-Telegram.

RECOMMENDATION:

Staff recommends the following motion:

Approval of a resolution ordering a special election of the City of Bedford, Texas to be held on November 3, 2020 to allow the voters to consider voting for or against the following proposition: the legal sale of all alcoholic beverages including mixed beverages.

FISCAL IMPACT:

The total estimated cost for the contract with Tarrant County is \$80.00.

ATTACHMENTS:

Resolution